

Act by an order made by the Minister of Aviation, as being an airport at which there appears to him to be a substantial amount of international passenger traffic.

(3) The power conferred by subsection (2) of this section to make orders shall include power to vary or revoke any order made thereunder by a subsequent order.

(4) Any power to make orders under this Act shall be exercisable by statutory instrument.

(5) Expressions used in this Act and in the Shops Act, 1950, have the same meanings in this Act as in that Act.

Short title,
citation and
extent.

2.—(1) This Act may be cited as the Shops (Airports) Act, 1962; and the Shops Act, 1950, and this Act may be cited together as the Shops Acts, 1950 and 1962.

(2) This Act shall not extend to Northern Ireland.



CHAPTER 36

An Act to make provision for contributions by local authorities towards the repair and maintenance of buildings of historic or architectural interest and the upkeep of gardens occupied therewith; and for purposes connected therewith. [19th July, 1962]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Power of local
authority to
contribute to
preservation
of historic
buildings.

1.—(1) A local authority in England or Wales may by grant or loan—

(a) contribute towards the expenses incurred or to be incurred in the repair or maintenance of a building which is situate in or in the vicinity of their area and is for the time being included in a list of buildings of special architectural or historic interest compiled or approved under section thirty of the Town and Country Planning Act, 1947; and

(b) with the consent of the Minister of Housing and Local Government, contribute towards the expenses incurred or to be incurred in the repair or maintenance of a

10 & 11 Geo. 6.
c. 51.

building in their area appearing to them to be of architectural or historic interest, other than such a building as is referred to in the foregoing paragraph,

and, at the time of making a contribution under this section towards the expenses of the repair or maintenance of a building may also, by grant or loan, contribute towards the expenses incurred, or to be incurred in the upkeep of any garden occupied with the building and contiguous or adjacent thereto.

(2) A contribution by way of loan under the foregoing subsection may be made upon such terms and conditions as the local authority may determine including, without prejudice to the generality of the foregoing words, a term that the loan shall be free of interest; and the local authority may at any time renounce their right to repayment of the loan or any interest for the time being outstanding, and, by agreement with the borrower, may otherwise vary any of the terms and conditions on which the loan is made.

(3) A local authority may require as a condition of the making by them of a contribution under this section by way of grant towards the expenses of the repair or maintenance or upkeep of any property that the person to whom the grant is made shall enter into an agreement with them for the purpose of enabling the public to have access to the property or part thereof during such period and at such times as the agreement may provide.

(4) In this section—

“building” includes any structure or erection and any part of a building as so defined;

“local authority” means the council of a county, county borough, metropolitan borough or county district, and a joint planning board constituted under section four of the said Act of 1947, but does not include the London County Council.

2.—(1) If, during the period of three years beginning with the day on which a grant is made under this Act to a person towards the repair or maintenance or upkeep of any property, that person disposes of the interest, or any part thereof, held by him in the property on that day by way of sale or exchange or lease for a term of not less than twenty-one years, the local authority may recover from that person, in any court of competent jurisdiction, the amount of the grant, or such part thereof as to them seems fit.

Recovery of grants on disposal of property within three years.

(2) If, in the case of property towards the repair or maintenance or upkeep of which a grant is made under this Act, a person becomes entitled by way of gift from the grantee, whether directly or indirectly (but otherwise than by will), to a part of the interest

held by the grantee in the property on the day on which the grant is made, a disposal by the donee in any manner mentioned in the foregoing subsection of the interest so acquired by him in the property, or any part of that interest, shall be treated, for the purposes of that subsection, as a disposal by the grantee of a part of the interest so held by him, and, if, in the case of any such property, a person becomes entitled by way of such a gift to the whole of the interest held by the grantee therein on the day aforesaid the foregoing subsection shall have effect as if the grant had been made to the donee instead of to the grantee and that interest had then been held by the donee.

(3) Subsection (1) of this section shall not be taken as conferring on a local authority a right to recover, in the event of proceedings thereunder being brought in relation to disposals of several parts of an interest in property, amounts in the aggregate exceeding the amount of the grant.

Expenses. 3. Any increase attributable to the provisions of this Act in the sums payable out of moneys provided by Parliament by way of Rate-deficiency Grant or Exchequer Equalisation Grant under the enactments relating to local government in England and Wales or in Scotland shall be paid out of moneys so provided.

Short title. 4. This Act may be cited as the Local Authorities (Historic Buildings) Act, 1962.

CHAPTER 37

Building Societies Act, 1962

ARRANGEMENT OF SECTIONS

PART I

CONSTITUTION OF BUILDING SOCIETIES

General provisions

Section

1. Establishment of building society.
2. Registration of rules and name of society.
3. Incorporation of society.
4. Contents of rules.
5. Effect of rules.
6. Power to raise and repay funds.
7. Powers in relation to land.

Membership

8. Members who are not shareholders.
9. Members under age of twenty-one.
10. Joint shareholders.
11. Liability of members.